

Professional Services Agreement

This sample is designed to test classification, clause extraction, dates, risks, translation, and document-grounded Q&A.; It is not legal advice and creates no real obligation.

DOCUMENT ID LEGAL-2026-1015	EFFECTIVE DATE 15 October 2026	TERM 12 months
--	---	---------------------------------

PARTIES

This Professional Services Agreement (the Agreement) is made between BluePeak Technologies Private Limited, having its registered office in Pune, Maharashtra (the Company), and Neha Kulkarni, an independent consultant residing in Mumbai, Maharashtra (the Consultant).

1. Services

The Consultant shall provide software architecture review, security assessment, and technical documentation services. Deliverables must meet the written acceptance criteria in Schedule A. The Company shall review each deliverable within 7 business days of receipt and either accept it or provide specific written reasons for rejection.

2. Fees and payment

The Company shall pay the Consultant INR 75,000 per month, plus applicable taxes. A valid invoice is payable within 15 calendar days after receipt. Undisputed overdue amounts accrue simple interest at 1% per month. The Company may withhold only a genuinely disputed amount and must explain the dispute in writing within 5 business days.

3. Term and termination

The Agreement begins on 15 October 2026 and continues for 12 months unless terminated earlier. Either party may terminate without cause by giving 30 days' written notice. A material breach must be cured within 15 days after written notice. Confidentiality, intellectual property, payment, limitation of liability, and dispute resolution obligations survive termination.

4. Confidentiality

Each party shall protect non-public business, technical, financial, and personal information using reasonable safeguards and shall use it only to perform this Agreement. Confidential information excludes information that is public without breach, was lawfully known before disclosure, is independently developed, or is received lawfully from a third party. Legally compelled disclosure is permitted after prompt notice where lawful.

5. Intellectual property

Upon full payment, the Company owns deliverables created specifically for the Company. The Consultant retains ownership of pre-existing tools, templates, methods, and general know-how. The Consultant grants the Company a perpetual, worldwide, royalty-free licence to any retained material embedded in an accepted deliverable solely as needed to use that deliverable.

6. Data protection and security

The Consultant shall process personal data only on documented instructions, restrict access to authorised personnel, use encryption for confidential data in transit, and notify the Company of a confirmed security incident without undue delay and no later than 48 hours after discovery.

7. Warranties

Each party warrants that it has authority to enter this Agreement. The Consultant warrants that services will be performed with reasonable skill and care and that, to the Consultant's knowledge, accepted deliverables will not knowingly infringe third-party intellectual property rights.

8. Limitation of liability

Except for fraud, wilful misconduct, breach of confidentiality, data protection obligations, or infringement indemnity, each party's aggregate liability is limited to INR 2,25,000. Neither party is liable for indirect, special, or consequential loss, including loss of profit or business opportunity, to the extent permitted by law.

9. Dispute resolution

The parties shall first attempt good-faith negotiation for 15 days. Any unresolved dispute shall be finally resolved by a sole arbitrator appointed jointly under the Arbitration and Conciliation Act, 1996. The seat and venue of arbitration shall be Pune, Maharashtra, and proceedings shall be conducted in English.

10. Governing law and notices

This Agreement is governed by the laws of India, with courts at Pune having jurisdiction for permitted court proceedings. Notices must be in writing and delivered by recognised courier or email to the addresses specified by the parties. An email notice is deemed received on the next business day unless a delivery failure message is received.

SAMPLE SIGNATURE RECORD

FOR THE COMPANY Aarav Shah	CONSULTANT Neha Kulkarni	SIGNATURE DATE 15 October 2026
--	--	--

This is a fictional document produced solely for testing DocSaarthi. Do not sign, execute, or rely on it.